

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF BOROVKOV AND OTHERS v. RUSSIA

(Applications nos. 46694/21 and 23 others –
see appended list)

JUDGMENT

STRASBOURG

21 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Borovkov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 22 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. All of the applicants, except for the applicant in application no. 51989/21, also raised other complaints under the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the

proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in the above paragraphs, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 21 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
1.	46694/21 07/08/2021	**Artem Valeryevich BOROVKOV** 1995	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 13 days	Moscow City Court 08/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.20 p.m. on 31/01/2021 until 8.10 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
2.	46701/21 07/08/2021	**Artem Gennadyevich NIKIFOROV** 1990	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 10/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 11.10 a.m. on 02/02/2021 until 2.00 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
3.	47661/21 15/09/2021	**Anastasiya Yevgenyevna ILYINA** 2002	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Ulyanovsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Ulyanovsk Regional Court 25/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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4.	48059/21 11/09/2021	**Ruslan Aleksandrovich ROZHNEV** 1996	Soboleva Yelena Aleksandrovna Izhevsk	Rally "Free Navalnyy" Izhevsk 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 21/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 21/04/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	48965/21 24/09/2021	**Anton Sergeyevich ZHIGALOV** 1982	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Kaliningrad 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Kaliningrad Regional Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report	4,000
6.	49777/21 17/09/2021	**Nikita Nikolayevich RODIONOV** 1998		Rally "Free Navalnyy" Chelyabinsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 17/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
7.	49911/21 17/09/2021	**Konstantin Nikolayevich OKUNEV** 1968		Rally "Free Navalnyy" Perm 31/01/2021	article 20.2 § 2 of CAO	detention for 5 days	Perm Regional Court 24/03/2021	Art. 5 (1) - unlawful detention - escorting to police station on 02/02/2021 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

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8.	49932/21 18/09/2021	**Ilya Pavlovich LEVIN** 1998	Nechiporenko Natalya Aleksandrovna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	50165/21 22/09/2021	**Denis Valentinovich ORLOV** 1990	Soboleva Yelena Aleksandrovna Izhevsk	Rally "Free Navalnyy" Izhevsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 24/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	50167/21 23/09/2021	**Aleksey Nikolayevich GOLOVKO** 1998	Shindyapin Arkadiy Vitalyevich Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 17/05/2021	Art. 5 (1) - unlawful detention - escorting to police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	50222/21 29/09/2021	**Alina Alekseyevna STELMASHENKO** 2001	Zubarev Dmitriy Vladimirovich Vladivostok	Rally "Free Navalnyy" Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 27/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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12.	50230/21 29/09/2021	**Kirill Borisovich CHISTYAKOV** 1980	Zubarev Dmitriy Vladimirovich Vladivostok	Rally "Free Navalnyy" Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 13/04/2021	Art. 5 (1) - unlawful detention - escorting to police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	50255/21 29/09/2021	**Anna Aleksandrovna SAPRONOVA** 1997	Zubarev Dmitriy Vladimirovich Vladivostok	Rally "Free Navalnyy" Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 17/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report	4,000
14.	50884/21 05/10/2021	**Anna Andreyevna NAZAROVA** 1993	Solovyev Stanislav Vyacheslavovich Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	51227/21 08/10/2021	**Oleg Sergeyevich GOLOTYAK** 1977	Chashchilova Mariya Valeryevna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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16.	51234/21 01/10/2021	**Aleksey Alekseyevich DEMENTYEV** 1981	Olgerdt Oksana Gennadyevna Moscow	Rally "Free Navalnyy" Moscow 03/02/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for more than twenty hours on 03/02/2021 after the offence record was drawn up; Art. 6 (1) - unfair criminal proceedings - various deficiencies of the administrative offence proceedings (no possibility to adduce evidence)	5,000
17.	51532/21 01/10/2021	**Andrey Aleksandrovich SHEVCHENKO** 2002		Rally "Free Navalnyy" Penza 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Penza Regional Court 01/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	51596/21 08/10/2021	**Leonid Vladimirovich NIKONISHIN** 1991		Rally "Free Navalnyy" Voronezh 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10.000	Voronezh Regional Court 13/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station between 4 p.m. and 10 p.m. on 31/01/2021 after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	51989/21 12/10/2021	**Lyubov Dmitriyevna MISHINA** 2002	Benyash Mikhail Mikhaylovich Krasnodar	Rally "Free Navalnyy" Krasnodar 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 24/05/2021		3,500

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20.	52009/21 08/10/2021	**Marina Mikhaylovna PODVALNAYA** 1995	Nazarov Ilya Yulyevich Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 5 days	Moscow City Court 12/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report between 11 p.m. on 02/02/2021 and 5.30 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
21.	52015/21 08/10/2021	**Anna Sergeyevna MINCHENKO** 1996	Nazarov Ilya Yulyevich Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 5 days	Moscow City Court 12/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report between 11 p.m. on 02/02/2021 and 5 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
22.	52244/21 01/10/2021	**Gordey Yevgenyevich SIVKOV** 1990	Levenberg Yeva Viktorovna Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/06/2021	Art. 5 (1) – unlawful detention - escorting to and detention at the police station for compiling an offence report between 4.35 p.m. and 9.40 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
23.	52471/21 04/10/2021	**Sergey Nikolayevich PANASYUK** 1990	Sidelnikova Polina Aleksandrovna Vladivostok	Rally "Free Navalnyy" Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 19/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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24.	52564/21 05/10/2021	**Dmitriy Andreyevich BEREZNIKOV** 1996	Sivoldayev Ilya Vladimirovich Voronezh	Rally "Free Navalnyy" Voronezh 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 05/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

[1] Plus any tax that may be chargeable to the applicants.